

Pyare Lal v. Chief Engineer

Allahabad High Court · Division Bench · 1 February 2016 · Writ-C No. 4184 of 2016 · **Writ disposed; petitioner left to apply under Clause 6.14**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ seeking quashing of an electricity recovery notice. Counsel at the hearing asked only that the demand be paid in instalments. The Court held that the instalment facility already exists under Clause 6.14 of the Electricity Supply Code, 2005, so the consumer must apply to the Executive Engineer under that clause rather than obtain a court-directed instalment schedule.

FACTUAL SUMMARY

Pyare Lal challenged a recovery notice dated 21 November 2015 issued by the Executive Engineer, Purvanchal Vidhyut Vitran Khand, Allahabad. At the hearing his counsel did not press the quashing prayer and only sought a direction that the demanded amount be deposited in instalments. Counsel for the distribution company stated that the instalment facility is available under Clause 6.14 of the Electricity Supply Code, 2005, and that the petitioner may file an application before the Executive Engineer concerned.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-payment-clause-6.14

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 provides an instalment facility for payment of electricity dues. A consumer who seeks to discharge a recovery demand in instalments must apply to the Executive Engineer under that clause; the High Court will not itself direct an instalment schedule in writ. The petition was disposed of, leaving that recourse open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 21 NOVEMBER 2015 WAS LIABLE TO BE QUASHED

The quashing prayer was not pressed at the hearing and was not examined. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALMENTS ON THE FACTS

Left to an application before the Executive Engineer under Clause 6.14. ¶ 1